

IN THE SENATE

SENATE JOINT MEMORIAL NO. 114

BY STATE AFFAIRS COMMITTEE

A JOINT MEMORIAL

TO THE SENATE AND THE HOUSE OF REPRESENTATIVES OF THE UNITED STATES IN CONGRESS ASSEMBLED AND TO THE CONGRESSIONAL DELEGATION REPRESENTING THE STATE OF IDAHO IN THE CONGRESS OF THE UNITED STATES.

We, your Memorialists, the Senate and the House of Representatives of the State of Idaho assembled in the Second Regular Session of the Sixty-eighth Idaho Legislature, do hereby respectfully represent that:

WHEREAS, President Donald J. Trump issued the Saving College Sports Executive Order on July 24, 2025, stating that "college sports are a uniquely American institution that provide life-changing educational and leadership-development opportunities." Further, "college athletics also provide substantial support to local economies and form an indelible part of family activities, pastimes, and culture in many communities"; and

WHEREAS, the executive order states that the future of collegiate sports is "under unprecedented threat", as "waves of recent litigation against collegiate athletics governing rules have eliminated limits on athlete compensation, pay-for-play recruiting inducements, and transfers between universities, unleashing a sea change that threatens the viability of college sports. While changes providing some increased benefits and flexibility to student-athletes were overdue and should be maintained, the inability to maintain reasonable rules and guardrails is a mortal threat to most college sports"; and

WHEREAS, the Boise State Broncos have contributed to Idaho's economic vitality with an annual cumulative economic impact of \$350 million, including significant visitor spending and job creation across the statewide economy; and

WHEREAS, Boise State University athletics has established a sustained record of competitive excellence at the NCAA Division I Football Bowl Subdivision (FBS) level since 1996, with an overall winning percentage among the top five football programs nationally, reflecting national prominence and excellence; and

WHEREAS, Boise State's football program currently holds the longest active streak of consecutive winning seasons in the FBS, demonstrating consistent high performance and program stability and creating deserved national recognition for the state of Idaho; and

WHEREAS, Boise State University athletics has demonstrated sustained competitive excellence in women's sports and in Olympic sports, including winning 63 women's team conference championships and producing multiple Olympians, providing meaningful athletic and educational opportunities, advancing leadership development, and reinforcing the values of discipline, teamwork, and achievement for student-athletes in Idaho; and

WHEREAS, Boise State's student-athletes have demonstrated academic success, recently achieving a record cumulative grade point average and the

1 highest graduation success rate in department history, illustrating the
2 broad educational benefits of collegiate athletics; and

3 WHEREAS, for every \$1.00 invested in Boise State University athletics,
4 the State of Idaho receives an estimated \$2.00 in return through added eco-
5 nomic activity, tax revenues, and public sector savings, underscoring the
6 department's high return on public and private investment; and

7 WHEREAS, Boise State University athletics home competitions drew more
8 than 485,000 attendees during fiscal year 2025, leading attendance among
9 its conference peers and enhancing tourism, hospitality, and small business
10 revenues throughout Idaho; and

11 WHEREAS, Boise State University athletics consistently generates na-
12 tional media exposure, including hundreds of millions of social media im-
13 pressions and millions of viewers on television, which raises Idaho's pro-
14 file and enhances the state's brand; and

15 WHEREAS, the success and visibility of Boise State University athlet-
16 ics, especially its iconic football program with its unique blue turf and na-
17 tional reputation, serve as an important cultural and community symbol, com-
18 monly described as the "front porch of Idaho," uniting residents, students,
19 and alumni across the state; and

20 WHEREAS, Power Two and Power Four conference institutions are making
21 significant decisions without Boise State University and its peers having
22 equal input on outcomes. Those decisions have a tremendous impact on Boise
23 State University and others regardless of whether they are in the best inter-
24 ests of the institution; and

25 WHEREAS, in the evolving collegiate athletics landscape shaped by name,
26 image, and likeness (NIL), revenue sharing, and shifting conference dynam-
27 ics, there is a compelling need for federal policy and funding frameworks to
28 ensure fair competition, sustainable athletic programs, and continued eco-
29 nomic and community benefits for states like Idaho; and

30 WHEREAS, the President's Saving College Sports Executive Order cor-
31 rectly states that "a national solution is urgently needed to prevent this
32 situation from deteriorating beyond repair and to protect non-revenue
33 sports, including many women's sports, that comprise the backbone of in-
34 tercollegiate athletics, drive American superiority at the Olympics and
35 other international competitions, and catalyze hundreds of thousands of
36 student-athletes to fuel American success in myriad ways."

37 NOW, THEREFORE, BE IT RESOLVED by the members of the Second Regular Ses-
38 sion of the Sixty-eighth Idaho Legislature, the Senate and the House of Rep-
39 resentatives concurring therein, that the Legislature calls on the Senate
40 and House of Representatives of the United States to take immediate federal
41 action to restore clarity, consistency, and stability to the governance of
42 intercollegiate athletics, recognizing that inaction maintains the status
43 quo for regulatory uncertainty, competitive imbalance, and financial risk
44 for public universities and the states they serve.

45 BE IT FURTHER RESOLVED that Congress is specifically urged to enact tar-
46 geted, limited legislation that: (i) Establishes a single, uniform national
47 framework for NIL and revenue sharing that preempts conflicting state laws
48 and allows universities to operate under clear, predictable rules rather
49 than through an ever-expanding patchwork of mandates and litigation; (ii)
50 Defines student-athlete employment status and eligibility; (iii) Preserves

1 women's sports and Olympic sports by ensuring that federal action does not
2 unintentionally force universities to eliminate programs, reduce oppor-
3 tunities, or divert resources from educational priorities; (iv) Restores
4 certainty and predictability for universities, student-athletes, and lo-
5 cal economies; (v) Provides a pathway for FBS institutions to build their
6 athletic brands and expand economic activity in their communities; and (vi)
7 Provides a level playing field for institutions to compete at the highest
8 level, driven not by conference affiliation, but by objective metrics such
9 as competitive success, brand awareness, and financial support for athletic
10 programs.

11 BE IT FURTHER RESOLVED that the Idaho Legislature calls on Congress
12 to act without delay because the absence of federal action will result in
13 program reductions, escalating costs, and competitive disparities that
14 threaten the future of collegiate athletics, and now is the critical moment
15 for Congress to preserve athletic opportunity, protect taxpayers' invest-
16 ments, and sustain the economic and civic benefits of college sports for
17 future generations.

18 BE IT FURTHER RESOLVED that the Secretary of the Senate be, and she is
19 hereby authorized and directed to forward a copy of this Memorial to the
20 President of the Senate and the Speaker of the House of Representatives of
21 Congress and to the congressional delegation representing the State of Idaho
22 in the Congress of the United States.